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[TENTATIVE] ORDER GRANTING

PLAINTIFFS J&J FREIGHT SOLUTIONS LLC AND GOLDEN J GROUP INC.'S MOTIONS TO
COMPEL FURTHER RESPONSES AT DEBTOR EXAMINATIONS and MONETARY SANCTIONS

I. INTRODUCTION

Plaintiff J & J Freight

Solutions, LLC ("J & J Freight") is a trucking company founded by Jie Mei Huang. Huang's husband, Qinyi Yu, formed Golden J Group, Inc. ("Golden J"), a related company that provides support services to J & J Freight, including port entry assistance, trucking, repairs, warehousing, and repackaging. Defendants Jianhua "Nick" Li and Nenyin "Terri" Tan are former employees of J & J Freight.

In this action, Plaintiffs allege
that Li and Tan misappropriated trade secrets to establish a competing
business, CTU Connection, Inc. ("CTU").

A jury trial concluded on January
6, 2025, with the jury finding in favor of Plaintiffs Golden J Group, Inc. and
J & J Freight Solutions, LLC, and against Defendants Nenyin "Terri" Tan,
Jianhua "Nick" Li, CTU Connection, Inc., EMC, Jianwen Huang, and Zheng "Emma"
You on the causes of action for misappropriation of trade secrets and breach of
fiduciary duty.

On May 8, 2026, Plaintiffs filed
the instant motions to compel Defendants Jianhua Li and Nenyin Tan to provide
further responses at their judgment debtor examinations. On July 21, 2026,

Defendants filed oppositions, and on July 27, 2026, Plaintiffs filed replies.

II. LEGAL STANDARD

Code of Civil Procedure section

708.110, subdivision (a), provides that a judgment creditor may apply to the court for an order requiring the judgment debtor to appear before the court, or a referee appointed by the court, to furnish information to aid in the enforcement of a money judgment.

Under Code of Civil Procedure

section 1218, subdivision (a), once the answer and evidence are presented, the court is required to determine whether the person proceeded against is guilty of the contempt charged.

III. ANALYSIS

Plaintiffs

bring two motions to compel Defendants Jianhua Li and Nenyin Tan to provide further responses to questions posed during their March 9, 2026, judgment debtor examinations. Plaintiffs contend that, although Defendants appeared for the examinations, they improperly asserted blanket Fifth Amendment objections and refused to answer virtually every substantive question, including questions concerning their employment, income, assets, business interests, and financial affairs. (Separate Statements for Li and Tan, pp. 2-11.) Plaintiffs argue that Defendants bear the burden of demonstrating a reasonable basis for believing their answers may tend to incriminate them, and therefore request orders compelling further responses, together with monetary sanctions and an order to show cause re contempt.

In opposition, Defendants Li and

Tan argue that their assertions of the Fifth Amendment were justified because the examinations occurred one week before a pending contempt proceeding arising from alleged violations of the Court's asset freeze and injunction orders. They contend the examination topics substantially overlapped with the issues in the contempt proceeding and therefore presented a real risk of self-incrimination. Defendants maintain they do not claim a blanket privilege, but instead request that the Court conduct the required particularized inquiry into each disputed question before ordering any further testimony. They further argue sanctions against counsel are improper because counsel merely advised his clients to

invoke their constitutional rights pending a judicial determination.

In reply, Plaintiffs argue

California law does not permit blanket assertions of the Fifth Amendment privilege during a judgment debtor examination. Plaintiffs contend Defendants failed to establish a reasonable basis for refusing to answer nearly every question posed and improperly left the determination of the privilege to themselves rather than the Court. (Reply, pp. 2-5.)

The Court agrees with Plaintiffs.

California law does not permit blanket assertions of the Fifth Amendment privilege in post-judgment enforcement proceedings. Rather, a witness asserting the privilege must do so with respect to specific questions, and the trial court must conduct a particularized inquiry to determine whether the privilege is properly invoked as to each question. (Warford v. Medeiros (1984) 160 Cal.App.3d 1035, 1045-1046.) Because routine judgment debtor examination questions do not inherently present a risk of self-incrimination, the burden rests with Defendants to demonstrate a reasonable basis for believing that answering each disputed question may tend to incriminate them. Here, Defendants' counsel declined to articulate any basis for the privilege during the examinations, stating only, "I don't need to explain my Fifth Amendment reasons." Standing alone, such a blanket assertion is insufficient to satisfy Defendants' burden and requires the Court to determine, on a question-by-question basis, whether the privilege was properly invoked.

The Court

makes the following findings:

A.

Residence and household information (Li Nos. 1-2;
Tan Nos. 1-7.)

These questions seek basic information concerning Defendants' residence and household, including whether Li resides with Tan. Defendants invoked the Fifth Amendment as to each question. The Court finds that Defendants have not demonstrated a reasonable basis for believing that answering these questions would tend to incriminate them. These questions seek routine identifying information relevant to enforcement of the judgment, and Defendants offer no individualized explanation connecting the requested information to the pending contempt proceeding.

Thus, Defendants shall provide further responses to these sets of questions.

Employment,
company roles, company ownership and logistics work (Li Nos. 3-5, 11-13; Tan Nos. 10-24.)

These questions seek information regarding Defendants' current employment, sources of income, and monthly expenses. Defendants contend these questions overlap with Plaintiffs' allegations concerning EMC, Top Global, and related logistics entities; the questions themselves seek general information regarding employment, company ownership, and business activities. Defendants have not demonstrated how answering any particular question would create a reasonable danger of self-incrimination. Generalized assertions that the information could support future contempt allegations do not satisfy Defendants' burden under Warford. Further responses are therefore required.

Income,
expenses, bank accounts, and financial assets (Li Nos. 6, 4-16, 22-26; Tan Nos. 8-9, 18-22, 30.)

Defendants argue these questions present the strongest basis for invoking the Fifth Amendment because Plaintiffs allege Li received transfers of CTU funds and made expenditures through American Express and BMW, while the permanent injunction required disclosure of financial institutions, account numbers, and monthly statements. According to Defendants, answers identifying bank accounts, income, expenses, or other financial assets could reveal undisclosed repositories of funds, trace the disposition of allegedly improper transfers, or expose omissions from the financial disclosures required under the permanent injunction. Defendants further contend that information regarding monthly income and expenses could be compared against existing financial records to identify allegedly dissipated assets.

The Court is not persuaded.

Although these questions seek routine financial information ordinarily requested during a judgment debtor examination to aid in enforcement of a money judgment, they do not, on their face, require Defendants to admit violating the

permanent injunction or otherwise acknowledge contemptuous conduct. Where the incriminating nature of customary judgment debtor examination questions is not apparent, the burden rests on the judgment debtor to demonstrate a real and substantial danger of self-incrimination, not a remote or speculative possibility. (Troy v. Superior Court (1986) 186 Cal.App.3d 1006, 1014; *McMartin v. County of Los Angeles* (1988) 202 Cal.App.3d 848, 856.)

The Court analogizes to a theft suspect invoking the Fifth Amendment privilege when asked by police for his or her home address because the home contains stolen property. The fact that law enforcement may later use that information to locate the stolen property does not render the question itself incriminating. Likewise, the possibility that Plaintiffs may use Defendants' responses identifying bank accounts, income, or other financial assets to locate evidence relevant to a future contempt proceedings does not transform an otherwise routine request for identifying financial information into an incriminating testimonial communication. Defendants have therefore failed to demonstrate a particularized basis for invoking the Fifth Amendment privilege as to these questions.

Vehicles
and Transportation Assets (Li Nos. 18-21; Tan Nos. 15-17.)

Defendants argue these questions implicate the pending contempt proceedings because Plaintiffs identified BMW payments as part of the alleged dissipation of assets and relied on trucks associated with EMC and CTU as evidence of continued proxy logistics activity. According to Defendants, information regarding vehicle identity and ownership could link alleged transfers to particular assets or connect Li to a company or ongoing logistics operation. (Oppositon., p. 16.)

The Court is not persuaded. On their face, these questions seek routine information regarding Defendants' current vehicle ownership and use in aid of judgment enforcement and do not, by themselves, suggest a danger of self-incrimination. Where no such danger is apparent from the face of the question, the burden shifts to the witness to demonstrate a reasonable basis for invoking the privilege. (*Warford v. Medeiros* (1984) 160 Cal.App.3d 1035, 1045; *Blackburn v. Superior Court* (1993) 21 Cal.App.4th 414, 429; *Troy v. Superior Court* (1986) 186 Cal.App.3d 1006, 1014.) Defendants have not met that burden. Their assertion that vehicle ownership or use could be connected to alleged asset

dissipation or logistics operations is too speculative to establish a reasonable danger of self-incrimination.

Thus, Defendants shall provide further responses to these sets of questions.

Intellectual

property (Li Nos. 27-28; Tan Nos. 23-24.)

Defendants argue these questions

implicate the pending contempt proceedings because the underlying injunctions concern trade secrets and business information. According to Defendants, ownership or control of patents, inventions, copyrights, or trademarks could lead to questions regarding business entities, operations, records, or the use of information covered by the injunctions. (Oppositions, pp. 16, 18.)

The Court is not persuaded. On

their face, these questions seek only to determine whether Defendants own any patents, inventions, copyrights, or trademarks. The possibility that an affirmative response may lead to additional questioning regarding Defendants' business operations is insufficient to establish a reasonable danger of self-incrimination. Defendants have therefore failed to demonstrate a reasonable basis for invoking the Fifth Amendment privilege, and shall provide further responses to these sets of questions.

Household,

family, school, inheritance and travel (Li Nos. 7-10, 17, 29-30; Tan Nos. 25-29.)

Defendants acknowledge the

connection between these questions and the pending contempt proceedings is "less direct," but argue the information could identify residences, third-party repositories of assets, household expenditures, or persons through whom assets or business activities were maintained. Defendants further contend that information regarding travel could affect the statute of limitations applicable to the contempt proceedings. (Opposition., pp. 16-18.)

The Court is not persuaded. On

their face, these questions seek routine background and household information in aid of judgment enforcement and do not suggest a danger of

self-incrimination. Defendants' assertions that the requested information could lead to evidence of concealed assets or future contempt allegations are too speculative to establish a reasonable basis for invoking the Fifth Amendment. Thus, Defendants shall provide further responses to these sets of questions.

Monetary sanctions

Plaintiffs request monetary

sanctions in the amount of \$5,085 for each motion to compel. In support, Plaintiffs submit the declaration of counsel, who states he spent approximately eight hours preparing the motion, anticipated reply, and hearing, at an hourly rate of \$625. Counsel further explains that he equally allocated the attorney's fees and costs incurred in connection with the joint judgment debtor examinations and the parallel motions involving Defendants Li and Tan. (Stiglitz Decl., ¶ 10.) Counsel also submits invoices reflecting the interpreter fee of \$1,350 and the court reporter fee of \$2,570 incurred for the debtor examinations. (Stiglitz Decl., Exhs. 9-10.) Counsel represents that the total fees and costs incurred were \$10,170, one-half of which, \$5,085, is allocated to each motion. (Stiglitz Decl., ¶ 10.)

Defendants oppose the request, arguing counsel advised Defendants in good faith to invoke their Fifth Amendment rights while the related contempt proceeding remained pending. However, the Court finds an award of monetary sanctions appropriate. Although Defendants were entitled to invoke the Fifth Amendment where warranted, they failed to establish a sufficient basis for asserting the privilege as to the questions at issue, thereby necessitating the filing of this motion. The Court further finds the amount requested to be reasonable in light of counsel's declaration and the work performed.

Thus, the Court awards Plaintiffs

request for monetary sanctions in the total amount of \$10,170, payable jointly and severally by Defendants Jianhua Li and Nenyin Tan and their counsel of record within 30 days of service of notice of entry of this order.

IV. ORDER

The Court GRANTS

Plaintiffs' motions to compel further responses at the judgment debtor examinations of Defendants Jianhua Li and Nenyin Tan. Defendants shall

appear for continued judgment debtor examinations and provide responses to all identified questions in the separate statements. Li's Nos. 1-30 and Tan Nos. 1-29.

The Court

GRANTS monetary sanctions in the total amount of f \$10,170, representing \$5,085 for each motion, payable jointly and severally by Defendants Jianhua Li and Nenyin Tan and their counsel of record within 30 days of service of notice of entry of this order.

Plaintiffs are to give notice.

Dated: July 31, 2026

JARED

D. MOSES

JUDGE OF THE SUPERIOR COURT